

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

QUANDEL SMOTHERS,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer TONY CUOCO, Shield No. 17359, Individually and in his/her official capacities; Sgt. FILLIP KHOSH, Shield No. 3586, Individually and in his/her official capacities; and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 16, 2017

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Tony Cuoco, Shield #17359; 75th Precinct 1000 Sutter Avenue Brooklyn, NY 11208

Sgt. Phillip Khosh Shield# 3586; 75th Precinct 1000 Sutter Ave, Brooklyn NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

QUANDEL SMOTHERS,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer TONY CUOCO, Shield No. 17359, Individually and in his/her official capacities; Sgt. FILLIP KHOSH, Shield No. 3586, Individually and in his/her official capacities; and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

PLAINTIFF QUANDEL SMOTHERS, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF QUANDEL SMOTHERS, is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants Police Officer TONY CUOCO, Tax / Shield No. 17359; and Sgt. FILLIP KHOSH Shield No. 3586 and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about June 16, 2014 at or around 4:18 a.m. PLAINTIFF was lawfully within the vicinity of 273 Hendrix Street, Brooklyn, New York.

9. PLAINTIFF was attending a party that was held at Festac Grill, located at 273 Hendrix Street.

10. At the end of the party, a fight broke out outside the location.
11. Several NYPD officers including Defendants CUOCO and KHOSH approached the location. They claim to have observed PLAINTIFF walk away from the scene.
12. Upon information and belief, defendant KHOSH followed PLAINTIFF, and approached him with his taser drawn.
13. PLAINTIFF ran, and while running he tripped and fell.
14. Defendant CUOCO fired three (3) to four (4) rounds at the PLAINTIFF; none of these shots hit PLAINTIFF.
15. Defendant CUOCO continued to pursue PLAINTIFF. CUOCO fired two (2) more shots at PLAINTIFF; one struck him in the abdomen.
16. Defendant CUOCO then placed handcuffs on PLAINTIFF.
17. Defendants then claimed to have recovered a firearm found on the ground in the vicinity of Van Sicklen Avenue and Liberty Avenue.
18. PLAINTIFF was transported to the hospital to be treated for the gunshot wound.
19. PLAINTIFF required surgery to repair his kidney, spleen and colon, and remained at the hospital for approximately two (2) weeks.
20. PLAINTIFF was subsequently charged with possession of a firearm.
21. In order to justify their use of deadly force, Defendants KHOSH and CUOCO falsely claimed that PLAINTIFF fired shots at both defendants.
22. However, ballistic evidence proved that PLAINTIFF never fired the weapon that was recovered.

23. Defendants KHOSH and CUOCO also falsely claimed that PLAINTIFF brandished a weapon at police; PLAINTIFF never brandished a weapon at police.

24. The allegations made by Defendants were false, and the defendants knew them to be false at the time the defendants made the allegations. Defendants made these false allegations to justify the shooting of PLAINTIFF.

25. As a direct result of the Defendants conduct, PLAINTIFF suffers from emotional, physical, mental trauma, mental anguish, shock, fear, pain, bodily injury, anxiety. PLAINTIFF currently is receiving medical care to treat the injuries that he sustained as a result of this incident.

FIRST CLAIM
UNREASONABLE FORCE

19. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

20. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

21. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
FAILURE TO INTERVENE

22. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And

Fourteenth Amendments.

24. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CLAIM THREE
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

25. PLAINTIFF repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

27. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City and the NYPD include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officers' arrest statistics;
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct.
- iv. fabricating evidence to justify use of force.

28. The foregoing customs, policies, usages, practices, procedures and rules of defendant City through the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

29. The foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

30. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF'S constitutional rights.

31. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF'S constitutional rights.

32. The acts complained of deprived the PLAINTIFF of the following constitutionally protected rights:

- a. To be free from the use of unreasonable force and
- d. To receive equal protection under the law.

33. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

DATED: New York, New York
June 16, 2017

_____/s/_____
Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for PLAINTIFF Quandel Smothers in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 16, 2017

_____/S/_____
Katherine E. Smith